

APPENDIX XI

[Rule 40(3)]

LEASE DEED

(Applicable to Government-owned Sites in the Delhi State revised terms)

TRUE COPY

THIS LEASE made this 26th day of March of the year 1981 (hereinafter called the Lessor which expression shall, unless the context requires another and different meaning include his successors and assigns) of the one part and S/o. S. Prabhakar Datt of Plot No. 11/19 (hereinafter called the Lessee) which expression shall, unless the context requires another different meaning, to mean and include the said S. Prabhakar Datt his heirs, executors, administrators, representatives and permitted assigns) of the other part.

WHEREAS the Lessor has agreed to demise to the Lessee the land described in the Schedule hereunder written upon the terms and conditions hereinafter appearing and contained;

NOW, this Indenture Witnesseth that in consideration of the premium of Rs 2880/- paid before the execution of these presents the receipt whereof the Lessor hereby acknowledges and the rent herein after reserved and of the covenants by the Lessor hereinafter contained the Lessor doth demise unto the Lessee all that piece of land containing by admeasurement 200.54 sq. yds. or thereabouts situated in Plot No 11/19 in Carpet Nagar N. B., which said plot of land is more particularly described in the Schedule hereunder written and with the boundaries thereof has for greater clearness been delineated on the plan annexed to these presents and thereon coloured red, together with all rights, easements and appurtenances to the same belonging save and except all mines and mineral products buried treasure, coal, petroleum, oil and quarries whatsoever in/under or within the said land with liberty for the Lessor and his lessees, licensees, agents and workmen and all other persons acting on his behalf to dig, search for, obtain and carry away the same on making reasonable compensation to the Lessee on account of any disturbance or damage that may be caused thereby to the surface of the said land or any building standing thereon and that such compensation shall in case of dispute be determined by an officer appointed by the Lessor for this purpose, as nearly as may be, in accordance with the provisions of the Land Acquisition Acts or Regulations for the time being in force, whose decision thereon shall be final.

TO HOLD THE said land unto to the Lessee for the term of 99 (Ninety-nine) years commencing from 13/6/81 yielding and paying therefor the yearly ground rent of Rs. 59.87 at the rate of Re. 1 per annum per hundred square yards or fraction thereof at the State Bank of India, New Delhi or at such other place as may be notified by the Lessor for this purpose from time to time.

(a) Rent will not be subject to revision except as provided for in (d) hereof.

(b) The Lessee shall before any assignment or transfer of the said premises hereby demised or any part thereof obtain from the Lessor approval in writing of the said assignment or transfer and all such assignees and transferees and the heirs of the Lessee shall be bound by all the covenants and conditions herein contained and be answerable in all respects therefor.

(c) The Lessee can transfer the land after obtaining the permission of the Lessor aforesaid and the Lessor will not share any unearned increment in the value of the land (being the difference in the premium paid by him to the Lessor and the market value of the land then prevailing) for permitting such transfer. The Lessor will, however, be entitled to claim and recover the unearned increment in the value of land in the event of any subsequent transfer of the land by a transferee the amount so to be recovered being 50% of the unearned increment in the value of the land.

In the case of any subsequent transfer the Lessor shall have the pre-emptive right to purchase the premises as hereby demised and all the buildings and structures standing thereon, after deducting 50% of the unearned increment as aforesaid.

ATTESTED

NOTARY PUBLIC



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TRUE COPY



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KNOW ALL MEN BY THESE PRESENTS that I, Shakti Devi
Wife of Late Shri Thakar Dutt, Aged 85 years, Resident of M-19a
Lajpat Nagar-III, New Delhi-24, being in possession of full senses,
without any coercion or undue influence, purely out of love and
affection to my Grand Son Mr. Ashok Kumar Mehtani S/O Sh. Om Parkash
Mehtani R/C W-2-III, Hind Nagar, Tilak Nagar, New Delhi, I do hereby
execute this my last WILL and testament.

शक्ति देवी

WHEREAS the Testator ~~and said Mr. Ashok Kumar Mehtani~~ is the
the owners having lease-hold rights of Flat No. 4, Central Market,
Lajpat Nagar-III, New Delhi-24. The Testator has also right in the entire
House No. M-19, ~~Central Market~~, Lajpat Nagar-III, New Delhi-24. The
Testator has also Fixed Deposit, Bank Accounts and Shares in different
Companies including other moveable and immoveable properties. The testator
has also Unit Trust Certificate No. M-882418988 dt. 31-12-88 for Rs. 25,000/-

शक्ति देवी

WHEREAS the aforesaid Mr. Ashok Kumar Mehtani is grand son of my
husband brother. Mr. Ashok Kumar Mehtani also is looking after the Testator,
hence out of love and affection, I execute this WILL IN favour of my Grand Son
Mr. Ashok Kumar Mehtani that after my death the said Mr. Ashok Kumar Mehtani
shall be owner of my aforesaid all moveable and immoveable properties. All the
rights of the Testator in all the properties moveable and/or immoveable shall
be transferred to said Mr. Ashok Kumar Mehtani. However, so long the Testator
is alive, the Testator shall be absolute owner of the moveable and immoveable
properties. Only after the death of the Testator all moveable and immoveable
properties shall be transferred unto said Mr. Ashok Kumar Mehtani and no other
person shall have any right, title or interest in any of the moveable and

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ATTESTED



Signature

(d) The Lessor shall also have the right to revise the annual ground rent at the time of any assignment or transfer of the premises hereby demised subsequent to the first transfer of assignment as aforesaid. The revised ground rent payable in such case shall be at the rate of 2½ per cent of the value of the land at the time of such transfer.

Provided further that in the case of any transfer or assignment subsequent to the first transfer or assignment the Lessor shall also have the right to revise the ground rent hereby reserved on the first day of January of the year following the year in which thirty years from the date of such subsequent transfer or assignment shall be complete and thereafter at the end of each successive period of not less than thirty years: provided that the increase in the rent fixed at each enhancement shall not at each such time exceed one half of the increase in the letting value of the site without buildings at the date on which the enhancement is made and such letting value shall be assessed by the Collector or Deputy Commissioner of Delhi: PROVIDED always that any such assessment of letting value for the purpose of this provision shall be subject to the same right on the part of the Lessee of appeal from the orders of the said Collector or Deputy Commissioner and within such time as if the same were an assessment by a Revenue Officer within the meaning of section 50 of the Punjab Land Revenue Act, 1887 (Act XVII of 1887) and the proceedings for or in relation to any such appeal shall be in all respect governed by the provisions of the said Act in the same manner as if the same had been taken thereunder.

(e) The ground rent will be payable in advance in half yearly instalments on the 15th January and 15th July each year. The ground rent shall be payable for the full half year for the period from the date of purchase or the grant of a lease of the site on the 15th January or 15th July next following as the case may be and shall be paid by the purchaser at once at the time of such purchase.

I. The Lessee doth to the intent that the burden of the covenants may run with the said land and may bind any permitted assignee thereof hereby covenant with the Lessor as follows :—

(i) to pay the rent on the days and in the manner herein before appointed for payment thereof and also to pay all taxes, rates and assessments that now are or may hereafter during the said terms be imposed upon the said land or buildings erected thereon or upon the Lessor or Lessee, his permitted sub-lessee or assignee in respect thereof, under any enactment for the time being in force ;

(ii) within the period of 24 calendar months next after the date of these presents the 13/3/54 from the 13/3/54 day of 19

Lessee shall and will at his own expense erect and finish fit for habitation on the site hereby demised one building *single storeyed containing one residential flat or *double storeyed consisting of one or two residential flats in all with a barsati on top, as may be approved by the Chief Commissioner, Delhi or such officer or body as the Lessor or the Chief Commissioner, Delhi may authorise in this behalf together with all necessary outhouses, sewers, drains and other appurtenances in accordance with a plan or plans to be approved of in writing by the Chief Commissioner, Delhi or such officer or body as the Lessor or the Chief Commissioner, Delhi may authorise in this behalf. And all the drains and sewers for the said premises shall be constructed, laid and connected to the satisfaction of the Chief Commissioner and the appropriate Municipal authority and in such position as shall be directed by the said Chief Commissioner or as may be required by the said Municipal authority ;

(iii) before the buildings on the said site are occupied connect the same with the gravitating sewers and to lay on water to the said buildings in the manner directed by an officer appointed, by the Lessor in this behalf and to employ a plumber duly approved by the said officer to make and do all such connections and works: provided that when the sewage or water systems are not extended to the said house/quarter at the time the said buildings are occupied, the Lessee shall, within 30 days from the extension of the sewage and water systems to the said house/quarter connect gravitating sewers and lay on water in the manner and according to the instructions and through the agency above mentioned ;

(iv) to maintain the premises and all buildings thereon in sanitary condition according to the directions of the officer appointed by the Lessor ;

- (v) not to erect more than one building* single storeyed containing one residential flat or *double storeyed consisting of one or two residential flats in all, with a barsati on top, as may be approved by the Chief Commissioner, Delhi or such officer or body as the Lessor or the Chief Commissioner, Delhi, may authorise in this behalf, except such outhouses and servant quarters as may be approved by the Lessor. Any servant quarter constructed by the Lessee shall not without any written permission of the Chief Commissioner, Delhi be occupied or permitted to be occupied otherwise than by the *bonafide* servants of the persons occupying the main building;
- (vi) not without the written consent of the Chief Commissioner, Delhi, to carry on or permit to be carried on, on the said land and buildings erected thereon during the said lease any trade or business whatsoever or use the same or permit the same to be used for any purpose other than that of a *single storeyed building consisting of one residential flat or a *double storeyed building consisting of one or two residential flats in all, with a barsati on top, as may be approved for the locality or as provided in the building already erected on the said land;
- (vii) not to sub-divide the said land or building erected thereon or any part thereof without the prior permission of the Lessor in writing;
- (viii) not to do or permit anything in or upon the demised premises or any part thereof which may be or become a nuisance, annoyance or cause damage to occupiers of other property in the neighbourhood;
- (ix) to register all changes in the possession of the whole of the said land or of the building erected thereon whether by transfer, succession or otherwise in the register kept in the office of the local authority having jurisdiction in the area in which the said land is situated (the expression local authority shall include the Delhi Improvement Trust) for this purpose within one calendar month from the respective dates of such changes (and if such changes are registered in the local sub-registry under the Indian Registration Act, 1908 within one calendar month from the date of registration in such sub-registry) and if the Lessee shall without sufficient cause neglect to register such changes in the manner aforesaid with the Lands Officer appointed by the local authority for this purpose, the Lessor may impose on him for each such case of neglect a penalty not exceeding Rs. 100 and the Lessor may in addition to the other remedies available to him under these presents enforce the payment of such penalties in the same manner as in the case of arrears of land revenue;
- (x) that all persons acting under the orders of Lessor shall be at liberty at all reasonable time in the day time during the said term to enter upon the said land or any building that may be erected thereon for any purpose connected with the Lease;
- (xi) the lessee and his successors and assignees shall on the determination of the lease on the expiry of the period of 99 years yield up the demised premises with all buildings erected thereon and landlord's fixtures thereto, provided that the Lessor shall pay to the Lessee the value of the said buildings and fixtures at the date of determination of the tenancy, such value to be determined in the absence of agreement, by a sole arbitrator agreed upon by both the parties or in the absence of such agreement by two arbitrators, one to be appointed by each party. The provisions of the Arbitration Act, 1940, and any statutory modification thereof shall apply to any such arbitration. The Lessor may however, renew the lease of the land after the expiry of 99 years on such terms and conditions as considered necessary by the Lessor;
- (xii) if during the period of the lease the premises are required for a public purpose or for any administrative purpose by the Lessor, the Lessor shall at the expiry of a notice of fifteen days to the effect that the said premises are required for such purpose to be served upon the Lessee by an officer appointed by the Lessor in this behalf, be at liberty to take possession of the land together with all buildings, structures and appurtenances. The Lessee shall be entitled to compensation in respect of the land, buildings and structures. The compensation payable under this clause shall, in case of dispute be determined by the Lessor or by such officer as he may appoint for the purpose, as nearly as may be, in accordance with the provisions of the Land Acquisition Act or regulation for the time being in force relating to the same and the decision of the Lessor or such officer shall be final and conclusive;
- (xiii) any sum of money due to or claimable by the Lessor in respect of the land hereby demised shall be recoverable by the Lessor as an arrear of land revenue under the provisions of the Punjab Land Revenue Act, 1887 (XVII of 1887) and any amending Act for the time being in force.

*Score out which is not applicable.

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11. If the yearly rent hereby reserved on any part thereof shall at any time be in arrear and unpaid for one calendar month next after any of the said days whereon the same shall have become due, whether the same shall have been demanded or not, or if there shall have been in the opinion of the Lessor or the Chief Commissioner of Delhi whose decision shall be final, any breach by the Lessee or by any person claiming through or under him of any of the covenants or conditions hereinbefore contained and on his part to be observed or performed then and in any such case it shall be lawful for the Lessor or any person or persons duly authorised by him notwithstanding the waiver of any previous cause or right of re-entry upon any part of the premises hereby demised or of the building thereon in the name of the whole to re-enter and thereupon demise and everything herein contained shall cease and determine and the Lessee shall not be entitled to compensation whatsoever, nor to the return of any premium paid by him.

12. No forfeiture or re-entry shall be effected except as herein provided without the permission of Chief Commissioner of Delhi and Chief Commissioner shall not permit such forfeiture or re-entry until Lessor has served on the Lessee a notice in writing—

- (a) Specifying the particular breach complained of;
- (b) If the breach is capable of remedy, requiring the Lessee to remedy the breach, and the Lessee fails within a reasonable time from the date of service of the notice to remedy the breach, if it is capable of remedy and in the event of forfeiture or re-entry the Chief Commissioner may in his discretion relieve against forfeiture on such terms and conditions as he thinks proper.

Nothing in this clause shall apply to entry for breach of covenant against unauthorised sub-division.

In WITNESS WHEREOF the President of India has caused managing officer his behalf to set his hand hereunto and the Lessee has hereto set his hand the day and the year first above written.

The schedule above referred to.

Plot No. M II 19.

14/1st Nagar M. 1924

1971/2004/1

26/5/74

Signed by _____
for and on behalf of President of India in the presence of

1. _____
2. _____

Signed by X Mahendran
the Lessee in the presence of

1. ✓ Phulvati Puri I-35 Tugpura Extn.
N. Delhi-14
2. ✓ 1/1/1974 3700/100/1
1-1-1974

100/100/1
100/100/1
100/100/1

AS PRESIDENT SECRETARY GENERAL

...declared as null and void. Before this all kinds of will etc. ^{शुद्ध-दलील} ^{प्रमाणित}
prior to it will be cancelled, and due to blood relation Mrs. Ashok Kumar Mahant will
be the Principal of Jeethamand Charitable Trust, M-9, Lajpat Nagar, New Delhi-110024.

IN WITNESS WHEREOF I do here unto set my hands/sign this WILL in
presence of two witnesses who knows me well and I know them well and they
also know each other.

शकुन्तला देवी
TESTATOR

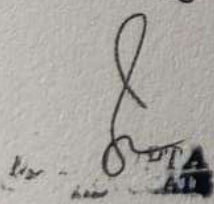
WITNESSES:

This WILL has been read over before the Testator and the
Testator, knowing the contents of this WILL signed in our presence and
we signed this in her presence.

1. Prakash Kumar
PRASHANT KUMAR
80 Sh. Keshavnagar
B-2/264 Keshavnagar
NEW DELHI-110023

Prakash
L

2. Suman Datta s/o. Har Nam Dutt
Halls - No 460 Fay Bazar Sonehatt


Suman Datta



ATTESTED

NOTARY PUBLIC
3.4.2023

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1/1/93

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WILL
Smt. Shakuntla Devi
Mo. Cated. Thakur Dutt
Mo. M-19 L.P. Ngr-III,
H. Bell.
18/1/93

12-1
श्री कान्तला देवी

Smt. Shakuntla Devi
88 yrs
(Term)

- ① Jagdish K. Chaur
- ② M. L. Gupta (Adm)

18/1/93

Jagdish K. Chaur



L.

Cutting on I Line 8 & 11 & R2
Line 2, 6, 7, duly attested by Term

88
18/1/93



TRUE COPY

2 mounted by Mr. [unclear] Smith
 1. [unclear] [unclear] [unclear] [unclear]
 2. [unclear] [unclear] [unclear] [unclear]
 at the office of the [unclear] [unclear] [unclear]
 the [unclear] [unclear] [unclear] [unclear]
 the [unclear] of [unclear] [unclear] [unclear]

to New Delhi

The number

The Kur. Datt

6550

and Mr. Smith

[illegible][illegible]

Having satisfied myself that the
 foregoing material is correct, I have
 signed and dated the same by me M. D.
 December 2nd 1941
 Office of P.S. ...
 In the official capacity of its attorney and
 signature is required with and document
 there are disclosed in registration.
 was submitted to registration.

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A. G. F.
S. L. H. G. G.
7/10/11

Phuket



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NOTARY PUBLIC

3.4.2023

FOR REENTRAN
NEW DELHI

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Registration Acknowledgement for Online Account

09-Nov-2022

1. Personal Details

Applicant Name	Mr. ASHOK KUMAR MEHTANI
Father Name	OM PARKASH MEHTANI
PAN Number	AAKPM6960F
Date of Birth	16-Feb-1951
Gender	MALE

2. Address for Communication

House Number & Street	M-19 LAJPAT NAGAR-III NEW DELHI-110024
Locality	LAJPAT NAGAR
Pincode	110085
City	DELHI / NEW DELHI
State	DELHI
Telephone No.	-
Mobile No.	+91 - 8920231186
Email ID	neetusagar1112@gmail.com

3. Property Details

S. No.	Land Type	Property Type	Property Sub-Type	Colony	Block Number	Plot Number	Lease Number	Property Known As
1	REHABILITATION	RESIDENTIAL	PLOT	LAJPAT NAGAR-III	M	19		M-19 LAJPAT NAGAR-III NEW DELHI-110024

You are successfully registered for a login account. Registration acknowledgement has been sent to through registered Email ID and the login credentials will be sent through Email / Mobile SMS only after the verification of provided details.

Registration status is available on www.ldo.gov.in and in case of any query related to the registration, please contact in the Property Section-II of Land and Development Office.

Thank you for Registration



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3.4.2023

Prabha Jain